

Rakesh Kaushik v. State of U.P. & Another

Allahabad High Court · Single Judge · 1 August 2016 · Application U/S 482 No. 22175 of 2016 · **Notice issued; interim protection from coercive action granted pending disposal**

HEADNOTE

Not a Supply Code case — a Section 482 Cr.P.C. application seeking quashing of a charge-sheet under s.434 IPC (mischief by injury to a public road/bridge, in the nature of dishonest damage), arising from a dispute over demolition of the applicant's house pursuant to encroachment-removal proceedings, with allegations of extortion, loot, and criminal intimidation against a local official. No electricity-related content appears anywhere in the order.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::s434-ipc-quashing-application

s.482 Cr.P.C. application to quash a charge-sheet under s.434 IPC arising from an encroachment-demolition/extortion dispute — no Supply Code nexus

HOLDING

Notice issued to respondents with time for counter/rejoinder affidavits; interim protection granted restraining coercive action in the pending criminal case, without affecting separate encroachment-removal proceedings or permitting reconstruction of the demolished portion. ¶ **unnumbered order**

FLAG Recorded for completeness of the source corpus only; no jurisprudential content relevant to the Supply Code.